



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

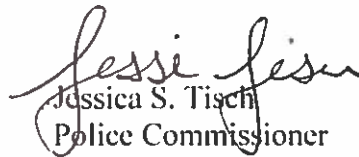
Re: Disciplinary Case No. 2023-29678 / PODS Case No. C-031364 regarding Police Officer Cydnee Davis, Tax No. 965032

Date: August 20, 2026

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer Davis used offensive language and was discourteous towards an individual. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Police Officer Davis will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ZOHRAN K. MAMDANI
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912 7235
www.nyc.gov/ccrb



PAT SMITH
INTERIM CHAIR

January 23, 2026

The Honorable Jessica Trisch
Police Commissioner
New York City Police Department One Police Plaza
New York, NY 10038
VIA EMAIL

Re: CCRB v. PO Cyndee Davis (CCRB #202206707, Tax #965032, DADS #2023-29678)

Commissioner Trisch:

A negotiated settlement of a dismissal of the charge along with NYPD imposed training was agreed upon and signed by all parties on March 13, 2025. Assistant Deputy Commissioner Vanessa Facio-Lince endorsed the negotiated settlement on March 20, 2025.

On August 29, 2022, at approximately 9:30 p.m., Police Officer Cyndee Davis responded, along with additional officers, to a 911 call placed by [REDACTED] from 33-51 84th Street, Apartment [REDACTED], Queens County. Mr. [REDACTED] reported that he had been involved in a dispute with his ex-wife, [REDACTED] and alleged that she had assaulted him earlier that day.

Upon arrival, Mr. [REDACTED] escorted the officers to his apartment, where they encountered Ms. [REDACTED]. While inside the residence, PO Davis opened a door toward the rear of the apartment. Ms. [REDACTED] appeared undressed and reached out, grabbing PO Davis's arm. PO Davis stated, "Don't touch me and get dressed."

A verbal dispute followed between PO Davis and Ms. [REDACTED]. Body-worn camera footage captured PO Davis telling Ms. [REDACTED] to "get dressed and stop acting like a psycho." In her CCRB interview, PO Davis stated she made the remark because Ms. [REDACTED] was yelling over the officers' instructions.

PO Davis subsequently handcuffed Ms. [REDACTED] who was partially covered by a blanket. Body-worn camera footage further depicted PO Davis attempting to put pants on Ms. [REDACTED] while the two continued to argue. During this exchange, Ms. [REDACTED] stated, "You didn't walk into a shelter. This is my private home," to which PO Davis replied, "Then stop acting like you're in a shelter." Ms. [REDACTED] was arrested and transported to the 115th Precinct stationhouse.

CCRB has charged PO Davis with (1) making an offensive remark for stating to the complainant, "stop acting like a psycho," and (2) using discourteous language for stating to the complainant, "stop acting like you are in a shelter."

Under the NYPD Disciplinary Guidelines, the mitigated penalty for Offensive Language is one penalty day. The mitigated penalty for Discourtesy is NYPD-imposed training.



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The negotiated settlement deviates from NYPD disciplinary guidelines as to the offensive language Specification the following reasons:

PO Davis has been a member of the Department for over seven years and has no disciplinary history with CCRB or the NYPD. Her commanding officer rates her overall performance as well above standards. Considering this record and considering the apparent escalation displayed by Ms. [REDACTED] during the incident, CCRB recommends dismissing the Charges and Specifications with the understanding that PO Davis will receive NYPD-imposed training.

Respectfully submitted.

Andre D. Applewhite
Andre D. Applewhite, Esq.
Chief Prosecutor
Administrative Prosecution Unit
Civilian Complaint Review Board